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Athens, 28-12-2023

Ref. No.: 3345

DECISION 43/2023

The Hellenic Data Protection Authority (hereinafter referred to as the "Authority") convened at the invitation of the President in a meeting via videoconference on Friday, 07-07-2023 at 10:00, postponed from 29-06-2023, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigoris Tsolias, as the rapporteur. Present, without voting rights, were Stefania Plota, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint no. G/IN/190/09-01-2018, A (hereinafter referred to as the "complainant") appealed to the Authority against the company Google Inc (hereinafter referred to as "Google" or "the company") for the non-satisfaction of the right to erasure (right to be forgotten) of results appearing in Google's search engine based on the search criterion of his name for the following links:

i.

...

ii.

...

The complainant states that the above two (2) links contain highly sensitive personal data concerning him, as well as defamatory claims, that there is no valid reason for the continuation of the said processing of the data, which is harmful to his private, professional, and social life, and that because he deemed that the aforementioned two links contain illegal, inaccurate, and outdated information related to him, he submitted his application dated ... to the data controller Google Inc. with reference number ... for the deletion from the search results of the Google Search engine of the said links, in accordance with Article 13 par. 1 of Law 2472/1997, and the activation of procedures to make future access to this data impossible. The company responded to the complainant with the email dated ... stating that "In this case, it appears that the links (URLs) you have indicated contain information concerning you, which is relevant and not outdated. For this reason, we conclude that the reference to this content in the search results is justified by the public's interest in accessing it. At this particular moment, Google has decided not to take any action regarding the said links (URLs). You may wish to send your deletion request directly to the website administrator, who controls the relevant site. The website administrator has the ability to remove the relevant content from the internet or to prevent its appearance in search engines [...]".

The Authority, in the context of examining the above complaint, sent to the companies Google LLC (formerly Google Inc) and Google Hellas the document no. G/EX/5232/26-07-2019 for the provision of opinions, and the company Google LLC responded with document no. G/IN/5932/30-08-2019 stating that "the contested information is relevant, recent, and pertains to the profession of the data subject. The 'youthfulness' of the information is in itself sufficient to demonstrate that the complainant cannot lawfully invoke the right to be forgotten concerning the said article. The relevance to the profession of the complainant, the failure to prove the inaccuracy of the information, and the role that the complainant plays in public life are additional factors that lead to the conclusion that the deletion of the URLs from the search results is not permissible" and that they pointed out the above in their response dated ... to the complainant. Furthermore, they stated that "the deletion of the contested links cannot be assessed based on the right to be forgotten, as the aforementioned links do not appear in the

search results that arise from searches based on the name of the complainant," concluding that "based on the above analysis and in accordance with the Guidelines of the Article 29 Working Party, we consider that the deletion of the aforementioned links (URLs) is not permissible." Subsequently, the complainant sent documents no. G/IN/1114/27-01-2022 and G/IN/7690/03-06-2022 as supplementary documents, in the first of which he lists the following seven (7) links, for which he requests the company to delete them from the search results based on his name:

1. ...
2. ...
3. ...
4. ...
5. ...
6. ...
7. ...

Following the above, the Authority, with its document no. G/EX/338/8-2-2023, called on the company to reconsider the complainant's requests and to provide clarifications. The company responded with its letter no. G/IN/1675/7-3-2023, stating that, regarding the aforementioned links, the complainant "does not explain the reasons for requesting deletion (...), nor does he clarify that he refers to the deletion of the links from the list of results that appears following a search of his name in the Google search engine." Furthermore, the company argued that the contested links have either been deleted or do not appear in the list.

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of the Google search engine results based on the name of the complainant and, therefore, the case is moot, especially since the complainant has already received the relevant update from the company on ... and concludes in her letter that "the right to be forgotten of the Complainant cannot be established for links that do not appear as search results based on his name."

In light of the above, the Authority, with documents numbered Γ/ΕΞ/1235/15-05-2023 and Γ/ΕΞ/1234/15-05-2023, summoned the aforementioned companies and the complainant, as legally represented, to attend, via teleconference, the plenary session of the Authority on 23-05-2023, in order to discuss the complaint in question. In the aforementioned session, the complainant A was present, and on behalf of Google LLC, Harikleia Daouti (AMDSA ...) and Evangelia Tsirigoti (AMDSA ...) were present. During the session, the complainant took the floor and stated that the aforementioned links no longer appear as results in the Google search engine based on his name and the matter is closed, although the company delayed in satisfying his requests. Correspondingly, the company confirmed that the said links have been deleted from the search engine results and in the electronic message numbered Γ/ΕΙΣ/4341/09-06-2023 sent to the Authority, it stated that "regarding the case of A, as the Complainant himself stated during the discussion, the complaint is moot because the complained links do not appear in the search results based on his name." Furthermore, the complainant in the document numbered Γ/ΕΙΣ/4322/09-06-2023, after the hearing, submitted a memorandum to the Authority, stating that "as has been established, all the contentious posts concerning me have been deleted by Google, accepting my request, albeit with significant delay and after repeated, unfounded refusals from them. Therefore, Google should be punished, as it has, among other things, improperly burdened your already overloaded Authority. Additionally, it should be noted that the following post remains searchable in the Google search engine: This specific post has been associated with my name with the word "..." and others, and the typing of my name. I have suffered immense moral damage, which continues to this day. Therefore, Google must take the necessary technical measures for the deletion of the above post, after informing its legal advisor." The complainant submits to the Authority, for the sake of completeness, "the irrevocable acquittal decision of the III Three-Member Misdemeanor Court of Athens, from which it appears that unscrupulous ..., who have now been referred to trial for committing serious crimes against me, in light of my ... in the year ..., are responsible for all that has happened to me, with the question still remaining: Who provided the information to the website ...?"

The Authority, after examining all the elements of the file and those arising from the hearing before it, the memoranda and statements of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.

2. Since Google LLC, based in the United States of America, with its document numbered Γ/ΕΙΣ/10060/14-12-2018, informed the Authority that, although Google Ireland will be the data controller for the user data collected and processed when users interact with Google's services - including data collected through the Google search engine, where the

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Users choose to store activity data or search history in their accounts - Google LLC will continue to be the data controller of the indexed content (index) of the Google search engine and manage the deletion process within the framework of the right to be forgotten. Therefore, in the case under consideration, the purpose and means of processing for the satisfaction of the right to erasure (the right to be forgotten) as per Article 17 of the GDPR are fully determined by Google LLC, as it states, whose establishment is located outside the European Union. Consequently, although this specific activity concerns data subjects located within the territory of the Union, since Google LLC does not have a main establishment in the Union for the activity in question, the "one-stop-shop" mechanism established by the GDPR, as per Articles 56 and 60, does not apply, and thus, according to the provisions of Articles 55 paragraph 1, 2 paragraph 1, and 3 paragraph 2 of the GDPR and 13 paragraph 1 point (g) of Law 4624/2019, the Authority has jurisdiction to address the complaint of A regarding the violation of the right to erasure.

3. Since the activity of Google Hellas/Athens (GOOGLE HELLAS Internet Applications Single Member Limited Liability Company) is the provision of marketing services to Google Ireland, the complaint regarding the rejection of the request for the deletion of links in the context of satisfying the right to be forgotten is examined only concerning Google LLC as the data controller of the indexed content (index) of the Google search engine.

4. Since the subject of the complaint concerns the non-satisfaction of the right to delete links from the results of the Google search engine based on the complainant's name, for which the complainant informed the Authority during the discussion of the case that it has ultimately been satisfied and the matter is closed.

5. Since subsequently, the complainant, in the post-hearing memorandum submitted to the Authority, indicated that a link ... remains as a result in the search engine based on his name. The Authority

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finds that this link was not included among the links for which the complainant had submitted a deletion request to the company. In any case, following the check conducted by the Authority, this link did not appear in the Google search engine based on the complainant's name.

6. Since the subject of the complaint is the non-satisfaction of the right to be forgotten, according to Article 17 paragraph 1 of the GDPR, of the complainant regarding the appearance of links in the results of the Google search engine based on his name, for which the complainant stated to the Authority that he was satisfied by the complained company, as the following links do not appear as a result:

i.

...

ii.

...

iii.

...

iv.

...

v.

...

vi.

...

vii.

...

viii.

...

ix.

...

7. Since the complaint concerns the non-satisfaction of the right to delete specific links from the results of the Google search engine based on the complainant's name, which, as stated by the complainant and confirmed by the Authority following a relevant check, no longer appear as a result in the search engine based on his name. Therefore, the complainant's request was satisfied by the complained company, and thus there is no reason for further examination of the complaint in question.

8.

Based on the above, the Authority unanimously decides that the complaint is rendered moot.

FOR THESE REASONS

The Authority:

Files the complaint as moot, due to the satisfaction of the complainant's request for the deletion of the nine links from the results of the Google search engine based on his name.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou